President assumed all the powers and suspended the provisions of Section 55, allowing him/her to frame and amend the business rules.

In other Union territories, such as in Delhi, the conflict over authority between the elected government and the L-G has been a major wrangling point, especially after 2014. The National Capital Territory (NCT) of Delhi has in the past decade seen endless clashes over legal authority in administration and

THE AMENDMENT HAS CAST A SHADOW OVER THE CENTRE'S POST-POLL MOVES, AS IT COMES AFTER PM MODI'S POSITIVE COMMENTS ON HIS SRINAGAR VISIT

appointments, spurring acrimony and affecting governance. The controversy has yet to find closure even after the intervention of the Supreme Court. "In J&K, the Reorganisation Act gives wide discretionary powers to the L-G and they will be subject to misinterpretation," says the former law secretary. "It will trigger conflict with an elected government. We are not like the Delhi UT but more like Puducherry. Unless we have full-fledged statehood, this conflict will continue." Unlike in Delhi, the Constitution does not mention specific restrictions for the Puducherry UT on passing laws on land, public order and policing.

Those opposing the new rules say it will undermine the authority of any elected government in J&K, as and when the long overdue polls are held, raising questions over the democratic process. Preparations for the assembly election will have to start soon as the Supreme Court's deadline for it is just a handful of weeks away (September 30). The last assembly poll was held in 2014; Jammu and Kashmir has been without an elected government since 2018. The direct central rule that followed seems to be finding ways to entrench itself. ■



MAHARASHTRA

A Reality Check for the MVA

By Dhaval S. Kulkarni

After a swashbuckling performance in the Lok Sabha election, the results in the Maharashtra legislative council polls have come as a setback to the Opposition Maha Vikas Aghadi (MVA) comprising the Congress, Shiv Sena (Uddhav Balasaheb Thackeray) and the Nationalist Congress Party (Sharadchandra Pawar). The ruling Mahayuti composed of the other trio—BJP, Eknath Shinde's Shiv Sena and the Ajit Pawar-led NCP—won nine out of the 11 seats that went to the polls. What's more, Jayant Patil of the Peasants and Workers Party (PWP), who was backed by the MVA, bit the dust amidst massive cross-voting, especially by Congress MLAs. While these legislators are expected to defect to the Mahayuti in the assembly polls due in October-November, their rebellion was only a part of the fault lines the defeat exposed within the MVA.

The electoral college for the polls consists of MLAs. Though the election take place by secret ballot, groups of MLAs are asked to mark their preference in a